ORDINANCE 20-001Z

ORDINANCE OF THE
TOWN OF NORTH PROVIDENCE AMENDING
THE EXISTING ZONING ORDINANCE AND ZONING MAP

WHEREAS, the Town Council of the Town of North Providence desires toamend, by Ordinance, its existing Zoning Ordinance and Zoning Map with regards to the Zoning of Lots 32,33,34,35,36 & 38 on Assessor's Plat 16(the "premises"),said property bordering Mineral Spring Avenue;

and

WHEREAS, an application has been filed by Jeff-Anthony Properties, Inc. requesting the amendment the North Providence Zoning Ordinance and Zoning Map.

NOW, THEREFORE, BE IT HEREBY ORDAINED BY THE TOWN COUNCIL OF THE TOWN OF NORTH PROVIDENCE AS FOLLOWS:

SECTION ONE: That the existing Zoning Ordinance and Zoning Map of the Town of North Providence be amended so that the zoning of Lots 32,33,34,35,36 & 38 on Assessor's Plat 16, said premises bordering Mineral Spring Avenue, as it appears on record as of this date in the Office of the Assessor of Taxes of said Town of North Providence, be changed from Residential Limited 10 (RL10) to Commercial Village(CV), subject to the restrictions set forth in Section Two herein.

SECTION TWO: That the amendment set forth in Section One herein shall be subject to the following restrictions:

A. That the amendment is approved based upon the plans submitted at the hearing, which are incorporated herein by reference, and the Town of North Providence hereby approves the plans as submitted;

B. That the development complies with all other zoning and Town regulations and State Laws/Regulations;

C. That there will be zero runoff from the premises to the abutting properties;

D. That there shall not be any business establishment or tenant on the premises which: (i) sells alcohol or alcoholic beverages in any form; (ii) is a restaurant establishment; or (iii) utilizes a drive through.

E. Design of any structures and landscaping on the property shall be in conformance with what was agreed to by the Applicant before the North Providence Planning Board and as set forth in the plans submitted at the Town Council hearing.

F. No means of egress or ingress to the premises shall be allowed onto any abutting side streets, all ingress and egress shall be via Mineral Spring Avenue;

SECTION THREE: That the plans submitted and the Amendment provided for herein conforms to the Comprehensive Plan of the Town of North Providence.

SECTION FOUR: The provisions of this Ordinance are severable and, in the event that any provision of this Ordinance is determined to be invalid, for any reason, the remaining provisions shall remain in full force and effect.

SECTION FIVE: This Ordinance shall take effect upon adoption and any Ordinance inconsistent herewith is hereby repealed.

APPROVED AS TO FORM AND LEGALITY:

TOWN SOLICITOR

ADOPTED: January 7, 2020

COUNCIL PRESIDENT

APPROVED: January 8, 2020

MAYOR

TOWN CLERK